

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Squad #14	CCRB Case #: 201705363	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/04/2017 10:14 PM	Location of Incident: Fort Tryon Park	18 Mo. SOL 1/4/2019	Precinct: 34		
Date/Time CV Reported Wed, 07/05/2017 10:29 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/05/2017 10:29 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Bryan Polster	20422	945282	034 PCT
2. POF Kiesha Lawhorne	04130	943468	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Kiesha Lawhorne	Abuse: Police Officer Kiesha Lawhorne threatened to seize § 87(2)(b) property.	A . Unsubstantiated
B . POM Bryan Polster	Abuse: Police Officer Bryan Polster searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . POF Kiesha Lawhorne	Abuse: Police Officer Kiesha Lawhorne searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Unsubstantiated
D . POF Kiesha Lawhorne	Abuse: Police Officer Kiesha Lawhorne seized § 87(2)(b) property.	D . Substantiated
E . POM Bryan Polster	Abuse: Police Officer Bryan Polster seized § 87(2)(b) property.	E . Substantiated
F . POM Bryan Polster	Abuse: Police Officer Bryan Polster seized § 87(2)(b) s property.	F . Unsubstantiated

Case Summary

On July 5, 2017, § 87(2)(b) called the CCRB and filed this complaint.

On July 4, 2017, at approximately 10:14 p.m., § 87(2)(b) was in a parking lot within Fort Tryon Park in Manhattan with his cousins, § 87(2)(b) and § 87(2)(b) and § 87(2)(b) girlfriend, § 87(2)(b) § 87(2)(b) and § 87(2)(b) sat inside the open trunk of a vehicle that § 87(2)(b) had borrowed from his cousin, § 87(2)(b) (who was not present), and § 87(2)(b) and § 87(2)(b) sat nearby on a rock ledge. Music was emanating from the vehicle. Shortly after their arrival, PO Bryan Polster and PO Kiesha Lawhorne of the 34th Precinct approached.

PO Polster and PO Lawhorne immediately asked § 87(2)(b) and § 87(2)(b) if they had marijuana and alcohol. § 87(2)(b) and § 87(2)(b) said no. PO Lawhorne ordered § 87(2)(b) to produce his identification and he complied. PO Lawhorne and PO Polster then abruptly left the location to assist other officers with a nearby vehicle stop.

Upon their return 10 minutes later, § 87(2)(b) began recording the incident on his cell phone. PO Polster ordered § 87(2)(b) to produce his identification twice before § 87(2)(b) complied. PO Polster told § 87(2)(b) he was being issued a summons for drinking alcohol, smoking marijuana, and being inside the park after its closure. PO Lawhorne allegedly told § 87(2)(b) that his speaker would be seized if he did not “give up” the marijuana (**Allegation A**). PO Polster and PO Lawhorne allegedly reached into the trunk of the vehicle and attempted to disconnect a speaker (**Allegation B, Allegation C**), but were unable to do so. PO Lawhorne and PO Polster seized another speaker located in the backseat of the vehicle, which belonged to § 87(2)(b) (**Allegation D, Allegation E**), as well as an identification card belonging to § 87(2)(b) (**Allegation F**). The identification card was found on the front passenger’s side floor of the vehicle.

PO Polster issued § 87(2)(b) a summons for § 87(2)(b) (Board Review 01), PO Lawhorne issued § 87(2)(b) a summons for § 87(2)(b) (Board Review 02), and the officers left the location. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) provided the CCRB with the video footage from his cell phone, which captures PO Polster requesting his identification and informing him that he was being issued a summons. None of the allegations are captured. A SnagIt copy of the footage has been placed below (Board Review 03). The original footage is located in IA #3 (Board Review 04) and summarized in IA #39 (Board Review 05).



201705363_20170919_1816_DM.mp4

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of September 25, 2017, a Notice of Claim has not been filed with the NYC Comptroller’s Office regarding this incident (Board Review 06).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving [§ 87(2)(b)] and [§ 87(2)(b)] (Board Review 09, Board Review 10).
- PO Polster has been a member-of-the-service for 10 years and has had one additional CCRB complaint filed against him involving two allegations, none of which were substantiated [§ 87(2)(g)].
- PO Lawhorne has been a member-of-the-service for 10 years and has had four additional CCRB complaints filed against her involving five allegations, none of which were substantiated [§ 87(2)(g)].

Potential Issues

[§ 87(2)(b)] and [§ 87(2)(b)] were unavailable to the investigation (see IAs for contact attempts).

Findings and Recommendations

Explanation of Subject Officer Identification

PO Polster acknowledged removing a speaker from the vehicle and testified that he did so at PO Lawhorne's request. PO Lawhorne corroborated this, and stated that she needed to seize the speaker as evidence, but was unable to do so due to its weight. [§ 87(2)(g)]

Allegation A – Abuse of Authority: Police Officer Kiesha Lawhorne threatened to seize

[§ 87(2)(b)] **property.**

[§ 87(2)(b)]'s video footage did not capture this aspect of the incident. [§ 87(2)(b)] (Board Review 11) testified that he was sitting in the trunk of the vehicle with music playing when PO Polster and PO Lawhorne approached and asked, "Where's the marijuana and the liquor?" [§ 87(2)(b)] denied that anyone had alcohol or marijuana with them, and told the officers that he was in the area to watch the fireworks. However, during his CCRB interview, [§ 87(2)(b)] acknowledged that the vehicle "probably" smelled like marijuana because his cousin has smoked marijuana inside it in the past, possibly as recently as three days prior to the incident. PO Lawhorne allegedly told [§ 87(2)(b)] that the officers would seize his speaker if he did not "give up" the marijuana.

[§ 87(2)(b)] (Board Review 12) corroborated that PO Lawhorne and PO Polster asked about marijuana and alcohol, but he did not allege that PO Lawhorne threatened to seize [§ 87(2)(b)] speaker. [§ 87(2)(b)] denied that any music was playing and denied that the vehicle smelled like marijuana.

[§ 87(2)(b)] (Board Review 13) denied that he had any interactions with PO Polster and PO Lawhorne. He testified that PO Lawhorne and PO Polster said that it smelled like marijuana and asked where the marijuana was, but he did not allege that PO Lawhorne threatened to seize [§ 87(2)(b)] speaker if he did not provide the marijuana.

PO Lawhorne (Board Review 14) testified that she and PO Polster approached [§ 87(2)(b)] and [§ 87(2)(b)] to issue a summons for the loud music that was emanating

from their vehicle. Upon approach, PO Lawhorne observed § 87(2)(b) with a tray covered in a green leafy substance that she identified as marijuana. PO Lawhorne asked, “What’s going on with this weed?” Before § 87(2)(b) could reply, PO Lawhorne and PO Polster left to assist other officers with a nearby vehicle stop. Upon their return approximately 10 minutes later, the marijuana was gone. PO Lawhorne asked § 87(2)(b) “What happened to all of the weed?” § 87(2)(b) asked what PO Lawhorne was talking about. PO Lawhorne denied that she threatened to seize § 87(2)(b) speaker if he did not “give up” the marijuana.

§ 87(2)(g)
PO Polster added that he saw open containers of alcohol on the ground approximately one foot away from the vehicle. PO Polster could not describe what the containers of alcohol looked like or what led him to believe that their contents were in fact alcohol. PO Polster did not recall what PO Lawhorne said in regards to the marijuana, but he denied that she told § 87(2)(b) that his speaker would be seized if he did not “give up” marijuana.

§ 87(2)(g)
It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: Police Officer Bryan Polster searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C – Abuse of Authority: Police Officer Kiesha Lawhorne searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) s video footage did not capture this aspect of the incident. § 87(2)(b) alleged that PO Polster entered the trunk of the vehicle as well as through the rear driver’s side door, and did so to seize speakers. He did not recall if PO Lawhorne entered or searched any part of the vehicle, and denied that PO Polster entered or searched any other areas of the vehicle. § 87(2)(b) alleged that both PO Polster and PO Lawhorne entered the trunk to remove the speaker, but additionally alleged that PO Polster opened the front and rear driver side doors, followed by the front and rear passenger side doors, and leaned his body from the waist up into each area. He could not discern exactly what PO Polster was doing inside of the vehicle.

Both PO Lawhorne and PO Polster testified that they initially observed § 87(2)(b) with marijuana, but that it disappeared when they returned to the location. PO Lawhorne acknowledged that she smelled marijuana, whereas PO Polster denied that he did so. PO Lawhorne acknowledged entering the backseat of the vehicle to remove a speaker, but was unable to remove it due to its weight. PO Lawhorne testified that PO Polster then entered the trunk and backseat to remove speakers, but denied that a more extensive search of the vehicle occurred. PO Polster acknowledged that he entered somewhere on the driver’s side to remove a speaker, but did not recall that he entered or searched any other areas of the vehicle, including the trunk.

§ 87(2)(g)
It is therefore recommended that **Allegation B** and **Allegation C** be closed as **unsubstantiated**.

Allegation D – Abuse of Authority: Police Officer Kiesha Lawhorne seized § 87(2)(b)

property.

Allegation E – Abuse of Authority: Police Officer Bryan Polster seized § 87(2)(b)

property.

The video footage did not capture this aspect of the incident, but PO Lawhorne and PO Polster acknowledged that they seized a speaker from the backseat of the vehicle.

PO Lawhorne testified that § 87(2)(b) speaker was seized because it needed to be vouchered as evidence in connection with the unreasonable noise summons, to prove that something was amplifying sound.

PO Polster testified that given that it was the 4th of July, loud music and fireworks were considered to be major conditions within the 34th Precinct. PO Polster said he had been instructed earlier in the week to seize speakers if they played loud music, but he could not recall where he was told this.

NYPD Patrol Guide, Procedure 214-23 (Board Review 16), directs that when issuing an unreasonable noise summons, an officers must seize the sound reproduction device as evidence that the violator possessed the device and that the device was operable. However, sound reproduction devices should not be seized from motor vehicles.

§ 87(2)(g)

It is therefore recommended that **Allegation D** and **Allegation E** be closed as **substantiated**.

Allegation F – Abuse of Authority: Police Officer Bryan Polster seized § 87(2)(b)

property.

§ 87(2)(b) alleged that PO Polster seized § 87(2)(b)'s identification card from the seat of the vehicle. § 87(2)(b) believed that § 87(2)(b)'s identification card must have fallen out of § 87(2)(b)'s passport when § 87(2)(b) removed it from the glove compartment to provide to PO Polster as his form of identification, and that it landed on the front passenger's side floor. PO Polster allegedly picked up the identification card and asked § 87(2)(b) and § 87(2)(b) who it belonged to. They said they did not know. When § 87(2)(b) returned to the vehicle after the officers left, he realized that § 87(2)(b)'s identification was missing.

§ 87(2)(b) also alleged that PO Polster seized § 87(2)(b)'s identification, but said he did so from the driver's side floor of the vehicle. He said PO Polster asked whose identification it was and § 87(2)(b) said it was not his.

§ 87(2)(b) did not mention this aspect of the incident during his CCRB statement and § 87(2)(b) was unavailable to the investigation (see Potential Issues).

PO Polster did not recall removing anything from the vehicle aside from the speaker. He denied seeing, handling, and seizing § 87(2)(b)'s identification, and PO Lawhorne denied seeing him do so.

It is therefore recommended that **Allegation F** be closed as **unsubstantiated**.

Squad: #14

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date